

1. Confidentiality

The employee agrees that information that is not generally known to the public to which they may have been or will be exposed as a result of being employed by Despacho India Private Limited(henceforth Despacho), is confidential information that belongs to the Company. This includes information or processes developed by the employee in the course of his employment, alone or with others, or entrusted to Despacho by its customers or others.

The employee shall hold Despacho's confidential information in strict confidence, and not disclose or use it except as authorized by Despacho and for Despacho's benefit. If anyone tries to compel the employee to disclose any of Despacho's confidential information, by subpoena or otherwise, the employee shall immediately notify Despacho so that Despacho may take any action it deems necessary to protect its interests.

The employee's agreement to protect Despacho's confidential information applies both while Despacho employs them and after their employment by Despacho ends; regardless of the reason it ends.

Despacho's confidential information includes, without limitation, information relating to Despacho's trade secrets, processes, research and development, product development plans, inventions, know-how, software (including source code and object code), procedures, manufacturing, engineering, purchasing, accounting, marketing, sales, customers, clients, suppliers, financial status or employee.

2. Inventions, Copyrights and Patents

The Company owns all Inventions, Works and Processes that the employee makes, conceives, develops, discovers, reduces to practice or fixes in a tangible medium of expression, alone or with others, either (a)

during his employment by the Company (including past employment, and whether or not during working hours), or (b) within Two Years after the employment ends if the Invention, Work or Process results from any work performed by the employee for Despacho or involves the use or assistance of Despacho's facilities, materials, personnel or confidential information. Despacho also owns all Inventions, Works and processes of the employee that the employee brings to Despacho that are used in the course of Despacho's business or that are incorporated into any Inventions or Works that belong to Despacho.

The employee will promptly disclose to Despacho, will hold in trust for Despacho's sole benefit, will assign to Despacho and thereby assign to Despacho all Inventions, Works and Processes described in the prior paragraph, including all copyrights (including renewal rights), patent rights and trade secret rights, vested and contingent. The employee will waive and hereby does waive any moral rights that he has or may have in the Inventions and Works described in the prior paragraph.

The employee agrees that all Works produced within the scope of employment (which shall include all Works produced related to Despacho's business, whether or not done during regular working hours) shall be considered "works made for hire" so that Despacho will be considered the author of the Works under the Federal copyright laws. At Despacho's direction and expense the employee will execute all documents and take all actions necessary or convenient for Despacho to document, obtain, maintain or assign its rights to these Inventions and Works. Despacho shall have full control over all applications for patents or other legal protection of these Inventions, Processes and Works.

"Inventions" mean discoveries,
developments, concepts, ideas,

improvements to existing technology, procedures, machines, products, compositions of matter, formulas, algorithms, computer programs and techniques, and all other matters ordinarily intended by the word "invention," whether or not patentable or copyrightable. "Inventions" also include all records and expressions of those matters. "Works" mean original works of authorship, including interim work product, modifications and derivative works, and all similar matters, whether or not copyrightable.

3. Despacho Materials

Upon termination of employment of the employee in any manner or sooner if the Company requests, the employee will safeguard and return to Despacho, all documents and property in the care, custody or control of the employee relating to the employment or Despacho's business, including without limitation any documents that contain Despacho's confidential information.

4. Non-raiding of Employee and clients

So long as Despacho employs the employee and for Twenty Four (24) months after termination of employment, regardless of the reason of termination, the employee will not directly or indirectly solicit or attempt to influence any employee to leave his or her employment, nor endeavor to solicit, influence or attempt to influence any client, customer or other person directly or indirectly to direct purchase of Despacho's product and / or services to themselves or any person, firm, corporation, institution or other entity in competition with the business of Despacho.

5. No Interference

The employee will not interfere with Despacho's relationships with its customers, clients, employee, vendors, bankers or others. This applies both while Despacho employs the employee and after termination

of employment by Despacho, regardless of the reason of termination.

6. Other Employment

During the term of employment with the Company, the employee will not do work that competes with or relates to any of Despacho's products or activities without first obtaining Despacho's written permission. Any business opportunities related to Despacho's business that the employee learns of or obtains while employed by Despacho (whether or not during working hours) belongs to Despacho, and the employee will pursue them only for Despacho's benefit.

The employee agrees, in the best interests of oneself and Despacho, that in the event that Despacho proposes to send him/her abroad pursuant to his/her employment, the employee will be governed automatically by the rules and regulations and terms and conditions applicable to the new assignment.

The employee shall also execute a written declaration affirming that he/she will not leave the employment of Despacho for a period of six months from (i) the date of the written declaration; or (ii) the date of his/her return after completion of his/her assignment abroad; whichever is later.

7. Miscellaneous

If the employee breaches this agreement it will cause Despacho irreparable harm. If the employee breaches or threatens to breach this agreement, Despacho will be entitled to injunctive or other equitable relief as well as money damages. If the employee breaches this agreement, he/she shall hold in trust for Despacho, all income he/she has received as a result of the violation. The employee consents to Despacho notifying anyone to whom the employee may provide services, of the existence and terms of this agreement.

Governing Law: In the event of any dispute arising in connection with the interpretation or implementation or purported termination of the employment and this agreement. Despacho or the employee may refer the dispute for resolution by mediation or as per laws of India in the courts of Bangalore, Karnataka.

In any lawsuit arising out of or relating to this agreement. including without limitation arising from any alleged tort or statutory violation, the prevailing party shall recover their reasonable costs and attorney's fees, including an appeal. The internal laws of India shall govern this agreement without giving effect to provisions thereof related to choose of laws or conflict of laws. Venue and jurisdiction of any lawsuit involving this agreement shall exist exclusively in the jurisdiction of the state of Karnataka. unless injunctive relief is sought by Despacho and in Despacho's judgement, may be effective unless obtained in some other venue. If any part of this agreement is held to be unenforceable, it shall not affect any other part. If any part of this agreement is held to be unenforceable as written. it shall be enforced to the maximum extent allowed by applicable law.